

AMENDMENT TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on May 11, 2022, effective September 1, 2022

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7	nonminor—dependents or wards of the juvenile court in a foster care placement and	
8	nonminor dependents (§§ 224.1(b), 303, 366.31, 391, 451, 452, 607.2, 607.3,	
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13		
14		

1 **Rule 3.1160. Requests for protective orders to prevent civil harassment, workplace**
2 **violence, private postsecondary school violence, and elder or dependent adult**
3 **abuse**

4
5 **(a)–(b) * * ***
6

7 **(c) Service of requests, notices, and orders**
8

9 (1) Except as provided in (2), tThe request for a protective order, notice of
10 hearing, and any temporary restraining order, must be personally served on
11 the respondent at least five days before the hearing, unless the court for good
12 cause orders a shorter time. Service must be made in the manner provided by
13 law for personal service of summons in civil actions.
14

15 (2) The court may specify another method of service for a request for a civil
16 harassment protective order brought under Code of Civil Procedure section
17 527.6 if the court determines that the petitioner has been unable to
18 accomplish personal service, and that there is reason to believe that the
19 respondent is evading service or cannot be located.
20

21 *(Subd (c) amended effective September 1, 2022; previously amended effective January 1,*
22 *1993, January 1, 2007, January 1, 2012.)*
23

24 **(d)–(e) * * ***
25

26 *Rule 3.1160 amended effective September 1, 2022; adopted as rule 363 effective January 1, 1984;*
27 *previously amended effective January 1, 1993, July 1, 1995, January 1, 2000, January 1, 2002,*
28 *and January 1, 2012; previously amended and renumbered as rule 3.1152 effective January 1,*
29 *2007; previously renumbered effective January 1, 2019.*
30

31 **Rule 5.220. Court-ordered child custody evaluations**
32

33 **(a)–(f) * * ***
34

35 **(g) Confidential written report; requirements**
36

37 (1) *Family Code section 3111 evaluations.* An evaluator appointed under Family
38 Code section 3111 must do all of the following:
39
40 (A) File and serve a report on the parties or their attorneys and any attorney
41 appointed for the child under Family Code section 3150; and
42

(B) Attach a *Notice Regarding Confidentiality of Child Custody Evaluation Report Under Family Code Section 3111* (form FL-328) as the first page of the child custody evaluation report when a court-ordered child custody evaluation report is filed with the clerk of the court and served on the parties or their attorneys, and any counsel appointed for the child, to inform them of the confidential nature of the report and the potential consequences for the unwarranted disclosure of the report.

(2) *Family Code section 3118 evaluations.* An evaluator appointed to conduct a child custody evaluation, investigation, or assessment based on (1) a serious allegation of child sexual abuse; or (2) an allegation of child abuse under Family Code section 3118 must do all of the following:

(A) Provide a full and complete analysis of the allegations raised in the proceeding and address the health, safety, welfare, and best interests of the child, as ordered by the court; and

(B) Complete, file, and serve *Confidential Child Custody Evaluation Report Under Family Code Section 3118* (form FL-329) on the parties or their attorneys and any attorney appointed for the child under Family Code section 3150.

~~(C) Attach *Notice Regarding Confidentiality of Child Custody Evaluation Report* (form FL-328) as the first page of the child custody evaluation report in (B) to inform the parties or their attorneys of the confidential nature of the report and the potential consequences for the unwarranted disclosure of the report.~~

(Subd (g) amended effective September 1, 2022; adopted effective January 1, 2021.)

(h)–(k) * * *

Rule 5.220 amended effective September 1, 2022; adopted as rule 1257.3 effective January 1, 1999; previously amended and renumbered effective January 1, 2003; previously amended effective July 1, 1999, July 1, 2003, January 1, 2004, January 1, 2007, January 1, 2010, and January 1, 2021.

Rule 5.555. Hearing to consider termination of juvenile court jurisdiction over a nonminor—dependents or wards of the juvenile court in a foster care

placement and nonminor dependents (§§ 224.1(b), 303, 366.31, 391, 451, 452, 607.2, 607.3, 16501.1(g)(16))

(a) Applicability

- (1) This rule applies to any hearing during which the termination of the juvenile court's jurisdiction over the following nonminors will be considered:

(A)-(B) * * *

(C) A ward who was subject to an order for foster care placement at the time ~~he or she~~ the ward attained 18 years of age, or a dependent of the juvenile court who is 18 years of age or older and is living in the home of the parent or former legal guardian.

- (3) This rule does not apply to a hearing on a petition for a nonminor to exit and reenter care to establish eligibility for federal financial participation under section 388(f). Those petitions may be decided with or without a hearing using mandatory forms *Petition and Order to Exit and Reenter Jurisdiction—Nonminor Dependent* (form JV-469) and *Findings and Orders Regarding Exit and Reentry of Jurisdiction—Nonminor Dependent* (form JV-471).

(Subd (a) amended effective September 1, 2022; previously amended effective July 1, 2012, and January 1, 2014.)

(b) * * *

(c) Reports

- (1) The report prepared by the social worker or probation officer for a hearing under this rule must, in addition to any other elements required by law, include:

(A) * * *

(B) The specific criteria in section 11403(b) met by the nonminor that make ~~him or her~~ the nonminor eligible to remain under juvenile court jurisdiction as a nonminor dependent as defined in section 11400(v);

(C) For a nonminor to whom the Indian Child Welfare Act applies, when and how the nonminor was provided with information about the right to continue to be considered an Indian child for the purposes of the

ongoing application of the Indian Child Welfare Act to ~~him or her as a~~
the nonminor;

(D)—(F) * * *

(G) When and how the nonminor was informed that if juvenile court jurisdiction is terminated, the court maintains general jurisdiction over ~~him or her~~ the nonminor for the purpose of resuming jurisdiction and ~~he or she~~ the nonminor has the right to file a request to return to foster care and have the juvenile court resume jurisdiction over ~~him or her~~ the nonminor as a nonminor dependent until ~~he or she~~ the nonminor has attained the age of 21 years;

(H) When and how the nonminor was informed that if juvenile court dependency jurisdiction or transition jurisdiction is continued ~~over him or her~~, ~~he or she~~ the nonminor has the right to have that jurisdiction terminated;

(I) If the social worker or probation officer has reason to believe that the nonminor will not appear at the hearing, documentation of the basis for that belief, including:

(i) Documentation of the nonminor's statement that ~~he or she~~ the nonminor does not wish to appear in person or by telephone for the hearing; or

(ii) Documentation of reasonable efforts to find the nonminor when ~~his or her~~ the nonminor's location is unknown;

(J)—(K) * * *

(2)—(4) * * *

(Subd (c) amended effective September 1, 2022; previously amended effective July 1, 2012, January 1, 2014, January 1, 2017, and January 1, 2021.)

(d) Findings and orders

The court must, in addition to any other determinations required by law, make the following findings and orders and include them in the written documentation of the hearing:

(1) *Findings*

(A) Whether the nonminor had the opportunity to confer with ~~his or her~~ the nonminor's attorney about the issues currently before the court;

(B)—(C) * * *

(D) For a nonminor to whom the Indian Child Welfare Act applies, whether the nonminor was provided with information about the right to continue to be considered an Indian child for the purposes of the ongoing application of the Indian Child Welfare Act to ~~him or her~~ the nonminor;

(E)—(G) * * *

(H) Whether the nonminor has been informed that if juvenile court jurisdiction is continued, ~~he or she~~ the nonminor may have the right to have juvenile court jurisdiction terminated and that the court will maintain general jurisdiction over ~~him or her~~ the nonminor for the purpose of resuming dependency jurisdiction or assuming or resuming transition jurisdiction over ~~him or her~~ the nonminor as a nonminor dependent;

(I) Whether the nonminor has been informed that if juvenile court jurisdiction is terminated, ~~he or she~~ the nonminor has the right to file a request to return to foster care and have the juvenile court resume jurisdiction over ~~him or her~~ the nonminor as a nonminor dependent until ~~he or she~~ the nonminor has attained the age of 21 years;

(J)—(K) * * *

(L) Whether the nonminor's:

(i) Transitional Independent Living Case Plan, if required, includes a plan for a placement the nonminor believes is consistent with ~~his or her~~ the nonminor's need to gain independence, reflects the agreements made between the nonminor and social worker or probation officer to obtain independent living skills, and sets out the benchmarks that indicate how both will know when independence can be achieved;

(ii) —(iii) * * *

(M)—(N) * * *

1 (2) Orders

2
3 (A) * * *

4
5 (B) When juvenile court jurisdiction is continued for the nonminor to
6 remain in placement as a nonminor dependent:

7
8 (i) * * *

9
10 (ii) Continue the nonminor's status as an Indian child for the
11 purposes of the ongoing application of the Indian Child Welfare
12 Act unless ~~he or she~~ the nonminor has elected not to have ~~his or~~
13 ~~her~~ the nonminor's status as an Indian child continued; and

14
15 (iii) Set a status review hearing under rule 5.903 within six months of
16 the date of ~~his or her~~ the nonminor's most recent status review
17 hearing.

18
19 (C)—(D) * * *

20
21 (E) For a nonminor who does not meet one or more of the eligibility
22 criteria of section 11403(b) and is not otherwise eligible to remain
23 under juvenile court jurisdiction or, alternatively, who meets one or
24 more of the eligibility criteria of section 11403(b) but either does not
25 wish to remain under the jurisdiction of the juvenile court as a
26 nonminor dependent or is not participating in a reasonable and
27 appropriate Transitional Independent Living Case Plan, the court may
28 order the termination of juvenile court jurisdiction only after entering
29 the following findings:

30
31 (i) * * *

32
33 (ii) The nonminor was informed of the options available to ~~him or~~
34 ~~her~~ to assist with the transition from foster care to independence;

35
36 (iii) The nonminor was informed that if juvenile court jurisdiction is
37 terminated, ~~he or she~~ the nonminor has the right to file a request
38 to return to foster care and have the juvenile court resume
39 jurisdiction over ~~him or her~~ the nonminor as a nonminor
40 dependent until ~~he or she~~ the nonminor has reached 21 years of
41 age;

42
43 (iv) * * *

(v) The nonminor had an opportunity to confer with ~~his or her~~ the nonminor's attorney regarding the issues currently before the court;

(vi) * * *

(F) * * *

(Subd (d) amended effective September 1, 2022; previously amended effective July 1, 2012, July 1, 2013, January 1, 2014, January 1, 2016, January 1, 2017, and January 1, 2021.)

Rule 5.555 amended effective September 1, 2022; adopted effective January 1, 2012; previously amended effective July 1, 2012, July 1, 2013, January 1, 2014, January 1, 2016, January 1, 2017, and January 1, 2021..

Rule 5.570. Request to change court order (petition for modification)

(a)–(j) * * *

(k) Petitions for juvenile court to exit and reenter jurisdiction over nonminors (§ 388(f))

This rule does not apply to a hearing on a petition for a nonminor to exit and reenter care to establish eligibility for federal financial participation under section 388(f). Those petitions may be decided with or without a hearing using mandatory forms *Petition and Order to Exit and Reenter Jurisdiction—Nonminor Dependent* (form JV-469) and *Findings and Orders Regarding Exit and Reentry of Jurisdiction—Nonminor Dependent* (form JV-471).

(Subd (k) adopted effective September 1, 2022.)

Rule 5.570 amended effective September 1, 2022; adopted as rule 1432 effective January 1, 1991; previously amended and renumbered as rule 5.570 effective January 1, 2007; previously amended effective January 1, 1992, July 1, 1995, July 1, 2000, July 1, 2002, January 1, 2003, January 1, 2009, January 1, 2010, January 1, 2014, January 1, 2016, January 1, 2019, and January 1, 2020.

1 **Rule 5.906. Request by nonminor for the juvenile court to resume jurisdiction**
2 **(§§ 224.1(b), 303, 388(e), 388.1)**

3
4 **(a) Purpose**

5
6 (1) Except as provided in (2), this rule provides the procedures that must be
7 followed when a nonminor wants to have juvenile court jurisdiction assumed
8 or resumed over ~~him or her~~ the nonminor as a nonminor dependent as defined
9 in subdivisions (v) or (aa) of section 11400.

10
11 (2) This rule does not apply to a petition for a nonminor to exit and reenter care
12 to establish eligibility for federal financial participation under section 388(f).
13 Those petitions may be decided with or without a hearing using mandatory
14 forms *Petition and Order to Exit and Reenter Jurisdiction—Nonminor*
15 *Dependent* (form JV-469) and *Findings and Orders Regarding Exit and*
16 *Reentry of Jurisdiction—Nonminor Dependent* (form JV-471).

17
18 *(Subd (a) amended effective September 1, 2022; previously amended effective July 1, 2012,*
19 *January 1, 2014, and January 1, 2016.)*

20
21 **(b) Contents of the request**

22
23 (1) * * *

24
25 (2) The request must be liberally construed in favor of its sufficiency. It must be
26 verified by the nonminor or if the nonminor is unable to provide verification
27 due to a medical condition, the nonminor's representative, and to the extent
28 known to the nonminor or the nonminor's representative, must include the
29 following information:

30
31 (A)—(D) * * *

32
33 (E) If the nonminor wants ~~his or her~~ the nonminor's parents or former legal
34 guardians to receive notice of the filing of the request and the hearing,
35 the name and residence addresses of the nonminor's parents or former
36 guardians;

37
38 (F) The name and telephone number of the court-appointed attorney who
39 represented the nonminor at the time the juvenile court terminated its
40 dependency jurisdiction, delinquency jurisdiction, or transition
41 jurisdiction if the nonminor wants that attorney to be appointed to
42 represent ~~him or her~~ the nonminor for the purposes of the hearing on
43 the request;

1
2 (G) If the nonminor is an Indian child within the meaning of the Indian
3 Child Welfare Act and chooses to have the Indian Child Welfare Act
4 apply to ~~him or her~~ the nonminor, the name of the tribe and the name,
5 address, and telephone number of ~~his or her~~ tribal representative;
6

7 (H) If the nonminor had a Court Appointed Special Advocate (CASA)
8 when ~~he or she~~ the nonminor was a dependent or ward of the court and
9 wants the CASA to receive notice of the filing of the request and the
10 hearing, the CASA's name;
11

12 (I)—(J) * * *

13
14 (3) * * *

15
16 *(Subd (b) amended effective September 1, 2022; previously amended effective July 1, 2012,*
17 *and January 1, 2016.)*
18

19 **(c) Filing the request**
20

21 (1) * * *

22
23 (2) For the convenience of the nonminor, the form JV-466 and, if the nonminor
24 wishes to keep ~~his or her~~ the nonminor's contact information confidential, the
25 *Confidential Information—Request to Return to Juvenile Court Jurisdiction*
26 *and Foster Care* (form JV-468) may be:
27

28 (A) * * *

29
30 (B) Submitted to the juvenile court in the county in which the nonminor
31 currently resides, after which:
32

33 (i) The court clerk must record the date and time received on the
34 face of the originals submitted and provide a copy of the originals
35 marked as received to the nonminor at no cost to ~~him or her~~ the
36 nonminor.
37

38 (ii)—(v) * * *

39
40 (C) For a nonminor living outside the state of California, the form JV-466
41 and, if the nonminor wishes to keep ~~his or her~~ the nonminor's contact
42 information confidential, the form JV-468 must be filed with the
43 juvenile court of general jurisdiction.

(3)—(5) * * *

(Subd (c) amended effective September 1, 2022; previously amended effective July 1, 2012, and January 1, 2016.)

(d) Determination of prima facie showing

(1) Within three court days of the filing of form JV-466 with the clerk of the juvenile court of general jurisdiction, a juvenile court judicial officer must review the form JV-466 and determine whether a prima facie showing has been made that the nonminor meets all of the criteria set forth below in (d)(1)(A)–(D) and enter an order as set forth in (d)(2) or (d)(3).

(A) The nonminor is eligible to seek assumption of dependency jurisdiction under the provisions of section 388.1(c), or the nonminor was previously under juvenile court jurisdiction subject to an order for foster care placement on the date ~~he or she~~ the nonminor attained 18 years of age, including a nonminor whose adjudication was vacated under Penal Code section 236.14;

(B)—(D) * * *

(2)—(3) * * *

(Subd (d) amended effective September 1, 2022; previously amended effective July 1, 2012, January 1, 2014, January 1, 2016, and January 1, 2019.)

(e) Appointment of attorney

(1) If the nonminor included on the form JV-466 a request for the appointment of the court-appointed attorney who represented the nonminor during the period of time ~~he or she~~ the nonminor was a ward or dependent or nonminor dependent, the judicial officer must appoint that attorney solely for the hearing on the request, if the attorney is available to accept such an appointment.

(2) If the nonminor did not request the appointment of ~~his or her~~ the nonminor's former court-appointed attorney, the judicial officer must appoint an attorney to represent the nonminor solely for the hearing on the request. The attorney must be selected from the panel or organization of attorneys approved by the court to represent children in juvenile court proceedings.

1 (3) In addition to complying with the requirements in (g)(1) for service of notice
2 of the hearing, the juvenile court clerk must notify the attorney of ~~his or her~~
3 the appointment as soon as possible, but no later than one court day from the
4 date the order ~~for his or her~~ of appointment was issued under (d)(3). This
5 notification must be made by telephone, fax, e-mail, or other method
6 approved by the presiding juvenile court judge that will ensure prompt
7 notification. The notice must also include the nonminor's contact information
8 and inform the attorney that a copy of the form JV-466 will be served on ~~him~~
9 ~~or her~~ the attorney and that one is currently available in the office of the
10 juvenile court clerk.

11
12 (4) If the request is granted, the court must continue the attorney's appointment
13 to represent the nonminor regarding matters related to ~~his or her~~ the
14 nonminor's status as a nonminor dependent until the jurisdiction of the
15 juvenile court is terminated, unless the court finds that the nonminor would
16 not benefit from the appointment of an attorney.

17
18 (A)—(B) * * *

19
20 (5) Representation of the nonminor by the court-appointed attorney for the
21 hearing on the request to return to juvenile court jurisdiction and for matters
22 related to ~~his or her~~ the nonminor's status as a nonminor dependent must be
23 at no cost to the nonminor.

24
25 (6) * * *

26
27 *(Subd (e) amended effective September 1, 2022; previously amended effective July 1,*
28 *2012.)*

29
30 (f) * * *

31
32 (g) **Notice of hearing**

33
34 (1) The juvenile court clerk must serve notice as soon as possible, but no later
35 than five court days before the date the hearing is set, as follows:

36
37 (A) * * *

38
39 (B) The notice of the date, time, place, and purpose of the hearing must be
40 served on the nonminor's parents only if the nonminor included in the
41 form JV-466 a request that notice be provided to ~~his or her~~ the
42 nonminor's parents.

1 (C) The notice of the date, time, place, and purpose of the hearing must be
2 served on the nonminor's tribal representative if the nonminor is an
3 Indian child and indicated on the form JV-466 ~~his or her~~ the
4 nonminor's choice to have the Indian Child Welfare Act apply to ~~him~~
5 ~~or her~~ the nonminor as a nonminor dependent.

6
7 (D) The notice of the date, time, place, and purpose of the hearing must be
8 served on the local CASA office if the nonminor had a CASA and
9 included on the form JV-466 a request that notice be provided to ~~his or~~
10 ~~her~~ the nonminor's former CASA.

11
12 (2)—(4) * * *

13
14 *(Subd (g) amended effective September 1, 2022; previously amended effective July 1, 2012,*
15 *and January 1, 2019.)*

16
17 **(h) Reports**

18
19 (1) The social worker, probation officer, or Indian tribal agency case worker
20 (tribal case worker) must submit a report to the court that includes:

21
22 (A) Confirmation that the nonminor was previously under juvenile court
23 jurisdiction subject to an order for foster care placement when ~~he or she~~
24 the nonminor attained 18 years of age and that ~~he or she~~ the nonminor
25 has not attained 21 years of age, or is eligible to petition the court to
26 assume jurisdiction over the nonminor pursuant to section 388.1;

27
28 (B) The condition or conditions under section 11403(b) that the nonminor
29 intends to satisfy;

30
31 (C) —(F) * * *

32
33 (2) At least two court days before the hearing, the social worker, probation
34 officer, or tribal case worker must file the report and any supporting
35 documentation with the court and provide a copy to the nonminor and to ~~his~~
36 ~~or her~~ the nonminor's attorney of record; and

37
38 (3) * * *

39
40 *(Subd (h) amended effective September 1, 2022; previously amended effective July 1, 2012,*
41 *January 1, 2014, and January 1, 2016.)*

1 **(i) Findings and orders**

2
3 The court must read and consider, and state on the record that it has read and
4 considered, the report; the supporting documentation submitted by the social
5 worker, probation officer, or tribal caseworker; the evidence submitted by the
6 nonminor; and any other evidence. The following judicial findings and orders must
7 be made and included in the written court documentation of the hearing.
8

9 **(1) Findings**

10
11 (A) * * *

12
13 (B) Whether the nonminor was previously under juvenile court jurisdiction
14 subject to an order for foster care placement when ~~he or she~~ the
15 nonminor attained 18 years of age, or meets the requirements of
16 subparagraph (5) of subdivision (c) of section 388.1;
17

18 (C)—(G) * * *

19
20 (H) Whether a nonminor who is an Indian child chooses to have the Indian
21 Child Welfare Act apply to ~~him or her~~ the nonminor as a nonminor
22 dependent.
23

24 **(2) Orders**

25
26 (A) If the court finds that the nonminor has not attained 21 years of age,
27 that the nonminor intends to satisfy at least one condition under section
28 11403(b), and that the nonminor and placing agency have entered into a
29 reentry agreement, the court must:
30

31 (i)—(ii) * * *

32
33 (iii) Order the social worker or probation officer to consult with the
34 tribal representative regarding a new Transitional Independent
35 Living Case Plan for the nonminor who chooses to have the
36 Indian Child Welfare Act apply to ~~him or her~~ the nonminor as a
37 nonminor dependent and who is not under the supervision of a
38 tribal case worker;
39

40 (iv)—(v) * * *

41
42 (B)—(C) * * *

1 (3) * * *

2

3 *(Subd (i) amended effective September 1, 2022; previously amended effective July 1, 2012,*
4 *January 1, 2014, January 1, 2016, and January 1, 2019.)*

5

6 *Rule 5.906 amended effective September 1, 2022; adopted effective January 1, 2012; previously*
7 *amended effective July 1, 2012, January 1, 2014, January 1, 2016, and January 1, 2019.*